

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
Honorable Mark A. McCannon
1050 Mission Road, South San Francisco, CA 94080
Department 2, Courtroom K
Thursday, 09/03/2026 at 2:00 pm

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept2@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling **OR** call (650) 261-5102 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/>

Meeting ID: 160 135 4419

Password: 845111

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	Title / Nature of Case
2:00 PM LINE 1 23-CIV-01638	ETELVINA LUCH MARROQUIN DE CUTZAL VS. ALEXANDRA JOSEPHINE JAY, ET AL

ETELVINA LUCH MARROQUIN DE CUTZAL
ALEXANDRA JOSEPHINE JAY

DAVID F. MAKKABI
STEPHEN C. TOSCHI

DEFENDANTS' MOTION TO COMPEL PLAINTIFF TO PROVIDE AUTHORIZATION FOR THE RELEASE OF HER MEDICAL RECORDS TO DEFENDANT, OR IN THE ALTERNATIVE, TO COMPEL COMPLIANCE WITH SUBPOENA BY CUSTODIAN; REQUEST FOR MONETARY SANCTIONS

TENTATIVE RULING:

For the following reasons, Defendants Alexandra Josephine Jay, Michael Jay, and Val's Auto Upholstery's Motion to Compel Plaintiff Etelvina Luch Marroquin De Cutzal to Provide Authorization for Release of Medical Records from San Mateo Medical Center or, Alternatively, to Compel Compliance with Subpoena by Custodian of Records is **DENIED**. Defendants' request for monetary sanctions of \$1,020 and Plaintiff's request for monetary sanctions of \$1,600 are also **DENIED**.

This action arises from a motor vehicle collision occurring on May 12, 2021. Plaintiff alleges, among other injuries, injuries to her head, back, arm, knees, and chest, traumatic brain injury, blurry and double vision, memory problems, and depression. During discovery, Defendants obtained records indicating that Plaintiff had been involved in a prior motor vehicle collision on January 25, 2020, after which she complained of injuries involving some of the same areas and psychological or emotional symptoms. Plaintiff subsequently testified that her primary care physician, Dr. Monge, practiced at San Mateo Medical Center and that she had received treatment there both before and after the subject collision.

Defendants first seek an order compelling Plaintiff to execute an authorization permitting San Mateo Medical Center to release her medical records. The Court declines to grant that relief. Code of Civil Procedure section 1985.3, subdivision (c), permits a subpoenaing party seeking a consumer's personal records either to provide the witness with proof of compliance with the consumer-notice requirements of subdivision (b) **or** to furnish a written authorization signed by the consumer or the consumer's attorney. The statute does not require the consumer to execute an authorization. Nor does Code of Civil Procedure section 1987.1 expressly authorize the Court to compel a party to sign such an authorization; rather, it authorizes the Court to quash, modify, or direct compliance with a subpoena. *Miranda v. 21st Century Ins. Co.* (2004) 117 Cal.App.4th 913 does not hold otherwise. Although the trial court in *Miranda* ordered the plaintiff to sign medical authorizations in an uninsured-motorist arbitration proceeding, the Court of Appeal did not adjudicate the propriety of that procedure and instead questioned why the insurer had not pursued compliance with the subpoenas under section 1987.1. Accordingly, Defendants have not established a statutory basis for compelling Plaintiff to execute the requested authorization.

Defendants alternatively request an order compelling nonparty San Mateo Medical Center to comply with the subpoena. California Rules of Court, rule 3.1346 requires that the notice and moving papers supporting

a motion to compel production from a nonparty deponent be personally served on the nonparty unless the nonparty has agreed to accept service by mail or electronic service. The proofs of service reflect service on Plaintiff's counsel, but not on San Mateo Medical Center, and the record does not establish that San Mateo Medical Center agreed to accept service by another method. The Court therefore may not grant affirmative relief compelling the nonparty's compliance on the present motion.

Because these grounds are dispositive, the Court does not reach the parties' remaining arguments concerning timeliness, the scope of the subpoena, or the procedure that should govern any eventual production of medical records.

Both requests for monetary sanctions are **DENIED**. To the extent Code of Civil Procedure section 2025.480, subdivision (j) applies, the Court finds that other circumstances make the imposition of sanctions unjust, including the apparent relevance of at least some of the medical records sought and the fact that the motion is denied on procedural and statutory grounds rather than on a determination that the records are categorically undiscoverable. The Court likewise declines to award sanctions under Code of Civil Procedure section 1987.2, subdivision (a), and does not find that the motion was made or opposed in bad faith.

The Court further notes that Defendants' notice identifies an incorrect location for the hearing. Department 2 is located at the Northern Branch, Courtroom K, 1050 Mission Road, South San Francisco, California 94080, not in San Mateo. (Cal. Rules of Court, rule 3.1110(b)(1).)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare a written order consistent with this ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide notice of the ruling to all appearing parties as required by law. The Court further directs the parties' attention to revised Local Rule 3.403(b)(iv) (eff. Jan. 1, 2024) regarding the form of proposed orders.

2:00 PM LINE 2

24-CIV-06967

CITY OF FOSTER CITY, ET AL VS. ELIZABETH KARNAZES, ET AL

CITY OF FOSTER CITY
ELIZABETH KARNAZES

BENJAMIN L. STOCK
PRO PER

MOTION TO QUASH SERVICE OF SUMMONS AND COMPLAINT, MEMORANDUM OF POINTS AND AUTHORITIES, AND DECLARATION OF ELIZABETH KARNAZES IN SUPPORT THEREOF

TENTATIVE RULING:

For the following reasons, the Motion to Quash is **DENIED**.

The Court has independently reviewed and considered all papers filed in support of and in opposition to the Motion to Quash, the evidentiary record, and the applicable legal authorities. The Court has also reviewed Judge Fineman's ruling addressing the Motion to Quash. Following its own independent review and analysis, the Court agrees with Judge Fineman's reasoning and conclusions and adopts that reasoning as its own. The Court has considered the arguments raised by the parties, including those not expressly discussed herein, and finds that none warrants a different result. Accordingly, for the reasons articulated in Judge Fineman's ruling and independently determined by this Court, the Motion to Quash is **DENIED**.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare a written order consistent with this ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide notice of the ruling to all appearing parties as required by law. The Court further directs the parties' attention to revised Local Rule 3.403(b)(iv) (eff. Jan. 1, 2024) regarding the form of proposed orders.

2:00 PM LINE 3

25-CIV-06841

ESTATE OF HUNTER BERGNER, ET AL VS. SAN MATEO COUNTY, ET AL

ESTATE OF HUNTER BERGNER
SAN MATEO COUNTY

DENISSE O. GASTELUM
ADAM M. STODDARD

DEMURRER TO PLAINTIFFS' COMPLAINT

TENTATIVE RULING:

For the following reasons, Defendants County of San Mateo, Kim Martinez, Melodee Legaspi-Tapang, Patricia Martinez, and Anna Kelleher's Demurrer to Plaintiffs' Complaint is **SUSTAINED WITH LEAVE TO AMEND**.

The requests for judicial notice are GRANTED to the extent they seek judicial notice of the existence and contents of court records and official records, but not the truth of disputed factual matters contained therein.

As a preliminary matter, Plaintiffs' opposition contains 17 pages of argument and therefore exceeds the 15-page limit imposed by California Rules of Court, rule 3.1113(d). An oversized memorandum is treated in the same manner as a late-filed paper. (Cal. Rules of Court, rule 3.1113(g).) In the exercise of its discretion, the Court has not considered argument appearing beyond the applicable page limit. The parties are directed to comply with the applicable page limitations in future filings.

In this action, Plaintiffs Estate of Hunter Bergner (the "Estate"), Patricia Colet, L.B.1, L.B.2, and S.B. (collectively, "Plaintiffs") seek damages arising from the March 15, 2024, death of Hunter Bergner ("Decedent") by suicide while incarcerated at Maguire Correctional Facility. The Complaint alleges that Defendant County of San Mateo (the "County") and its employees are liable for their respective roles in failing to prevent Decedent from taking his own life.

The County and Defendants Kim Martinez, Melodee Legaspi-Tapang, Patricia Martinez, and Anna Kelleher (collectively, "Defendants") demur generally and specially for uncertainty to the Complaint and its four causes of action asserted against them.

LEGAL STANDARD

A demurrer tests the legal sufficiency of the factual allegations of the operative pleading. (*New Livable California v. Association of Bay Area Governments* (2020) 59 Cal.App.5th 709, 714–715; *Genis v. Schainbaum* (2021) 66 Cal.App.5th 1007, 1014.) In determining whether a complaint states a cause of action, the Court accepts properly pleaded material facts as true, together with facts that reasonably may be inferred from those allegations, but does not accept contentions, deductions, or conclusions of fact or law. (*Richtek USA, Inc. v. uPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 658.) The pleading is read as a whole and liberally construed. (Code Civ. Proc., § 452; *Herman v. Los Angeles County Metropolitan Transportation Authority* (1999) 71 Cal.App.4th 819, 824.)

A special demurrer for uncertainty lies where a pleading is uncertain, ambiguous, or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) California Rules of Court, rule 2.112 requires each separately stated cause of action to identify its nature, the party asserting it where there are multiple plaintiffs, and the party or parties against whom it is asserted. Failure to comply with those requirements may render a pleading subject to a special demurrer for uncertainty. (*Grappo v. McMills* (2017) 11 Cal.App.5th 996, 1014.)

GOVERNMENT CODE SECTION 945.6 DOES NOT ESTABLISH THAT THE ENTIRE COMPLAINT IS TIME-BARRED

Defendants first contend that the entire Complaint is barred because Plaintiffs' government claims were rejected on October 23, 2024, but this action was not filed until September 9, 2025.

Government Code section 945.6, subdivision (a)(1), however, does not measure the six-month period from the date appearing on the rejection. The statute requires an action to be commenced no later than six months after the written rejection notice is "personally delivered or deposited in the mail." (Gov. Code, § 945.6, subd. (a)(1); see Gov. Code, § 913, subd. (b).)

The Complaint alleges that the claims were rejected on October 23, 2024, but does not establish when written notice of rejection was personally delivered or deposited in the mail. Accordingly, the face of the Complaint does not establish that the six-month period under Government Code section 945.6 expired before this action was filed. The demurrer to the entire Complaint on that ground is therefore **OVERRULED**.

FIRST CAUSE OF ACTION — NEGLIGENCE

The First Cause of Action for negligence is purportedly asserted by all Plaintiffs against all Defendants. The pleading, however, combines a survival claim belonging to the Estate with wrongful-death claims belonging to Decedent's heirs.

Survival and wrongful-death claims are legally distinct. A survival action continues a cause of action belonging to the decedent and is prosecuted by the decedent's personal representative or successor in interest, whereas a wrongful-death action is an independent cause of action belonging to the statutorily specified heirs for injuries they personally sustain as a result of the death. (*Quiroz v. Seventh Ave. Center* (2006) 140 Cal.App.4th 1256, 1264, 1278, 1281.)

Plaintiffs' opposition acknowledges that the Estate intends to pursue survival damages while the remaining Plaintiffs intend to pursue wrongful-death damages. That clarification, however, is not adequately reflected in the Complaint itself. Because the claims belong to different Plaintiffs, are asserted in different capacities, and seek compensation for different injuries, they should be separately and clearly pleaded in conformity with California Rules of Court, rule 2.112.

Accordingly, the special demurrer for uncertainty to the First Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

The Court does not otherwise agree that the negligence theory against Defendant Kim Martinez necessarily falls outside the government claims presented. The submitted claim materials refer to alleged acts and omissions of custodial personnel concerning Decedent's medical needs, including an alleged failure to summon or transport Decedent for necessary medical care. The claim presentation requirement does not

require the claimant to plead each factual detail or legal theory ultimately alleged in the complaint, so long as the claim fairly apprises the public entity of the factual basis for the litigation. (See *Nelson v. State of California* (1982) 139 Cal.App.3d 72, 79; *Donohue v. State of California* (1986) 178 Cal.App.3d 795, 804, quoting *Elias v. San Bernardino County Flood Control Dist.* (1977) 68 Cal.App.3d 70, 74.)

Nor does the County's general immunity from direct common-law tort liability necessarily dispose of the negligence claim as pleaded. Plaintiffs expressly rely upon Government Code section 815.2, subdivision (a), which provides for public-entity liability for injury proximately caused by an employee acting within the scope of employment where the employee's conduct would otherwise give rise to liability. Any applicable statutory immunity may be addressed in relation to the particular acts and defendants alleged in the amended pleading.

SECOND CAUSE OF ACTION — PROFESSIONAL NEGLIGENCE

The Second Cause of Action for professional negligence is asserted by the Estate against Defendants Melodee Legaspi-Tapang, Patricia Martinez, and Anna Kelleher, each of whom is alleged to have provided medical services to Decedent.

Code of Civil Procedure section 340.5 provides that an action for injury or death against a health care provider based upon professional negligence must be commenced within three years after the date of injury or one year after the plaintiff discovers, or through reasonable diligence should have discovered, the injury, whichever occurs first. Where a complaint appears on its face to be barred by the applicable statute of limitations, the plaintiff must plead facts establishing delayed discovery, tolling, or another basis for avoiding the apparent bar. (*County of Alameda v. Superior Court* (1987) 195 Cal.App.3d 1283, 1286.)

Here, the Estate asserts a survival claim based on alleged professional negligence occurring before Decedent's death on March 15, 2024. This action was filed on September 9, 2025, more than one year later. Unlike the heirs' independent wrongful-death claims, the Estate's survival claim continues the cause of action that belonged to Decedent. (See *Quiroz v. Seventh Ave. Center*, supra, 140 Cal.App.4th at p. 1264.) The rule applicable to accrual of an heir's wrongful-death action under *Larcher v. Wanless* (1976) 18 Cal.3d 646 does not convert the Estate's survival claim into a new cause of action accruing in the heirs.

Plaintiffs argue in opposition that the alleged professional negligence was not discovered until June 2025 and also rely upon tolling arising from prior federal litigation. Those matters, however, are not adequately alleged in the Complaint. An opposition cannot substitute for allegations necessary to plead around an apparent statute-of-limitations bar.

Accordingly, the demurrer to the Second Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**. Plaintiffs may amend to allege, if they can do so consistently with their obligations under Code of Civil Procedure section 128.7, facts establishing delayed discovery, statutory tolling, or another basis for avoiding the limitations bar.

THIRD CAUSE OF ACTION — GOVERNMENT CODE SECTION 845.6

The Third Cause of Action is asserted by the Estate against all Defendants under Government Code section 845.6.

Section 845.6 creates a narrow exception to governmental immunity. A public employee, and the employing public entity when the employee acts within the scope of employment, may be liable where the employee knows or has reason to know that a prisoner requires immediate medical care and fails to take reasonable action to summon such care. (Gov. Code, § 845.6.) The statute imposes a duty to summon immediate medical care; it does not create liability for negligent diagnosis, inadequate treatment, failure to monitor, or deficient follow-up after medical care has been summoned. (*Castaneda v. Department of Corrections & Rehabilitation* (2013) 212 Cal.App.4th 1051, 1070–1074; *Watson v. State of California* (1993) 21 Cal.App.4th 836, 841–843.)

The Complaint does not distinguish these materially different theories with sufficient clarity. Some allegations suggest that medical personnel examined or assessed Decedent but failed to diagnose, treat, monitor, or respond appropriately. Those allegations concern the adequacy of medical care after medical personnel were involved and do not, without more, establish a failure to summon care under section 845.6. Other allegations appear to assert that Defendant Kim Martinez knew Decedent was suicidal but failed to summon necessary medical assistance.

The cause of action nevertheless pleads these theories collectively against all Defendants without adequately identifying which Defendant allegedly knew of what immediate medical need, when that knowledge arose, and what reasonable action to summon care that Defendant failed to take. These distinctions are material both to the elements of section 845.6 and to the potentially applicable immunities under Government Code sections 855.8 and 856.

Government Code section 844.6 does not categorically immunize the County from a properly pleaded section 845.6 claim because section 845.6 is expressly identified as an exception to section 844.6's general prisoner-immunity provision. The Court likewise does not determine at this stage that sections 855.8 or 856 categorically bar any amended section 845.6 claim; application of those provisions depends upon the particular acts or omissions alleged.

Accordingly, the special demurrer to the Third Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**. Any amended pleading shall identify the particular Defendant or Defendants against whom the section 845.6 claim is asserted and allege facts showing, as to each, the claimed knowledge of a need for immediate medical care and the failure to take reasonable action to summon that care.

FOURTH CAUSE OF ACTION — TOM BANE CIVIL RIGHTS ACT

The Fourth Cause of Action is asserted by the Estate against all Defendants under Civil Code section 52.1.

The Bane Act provides a civil remedy where a person interferes, or attempts to interfere, by threat, intimidation, or coercion with the exercise or enjoyment of rights secured by federal or state law. (Civ. Code, § 52.1, subds. (b), (c).) A Bane Act claim requires more than negligence. Where the alleged coercive conduct is the constitutional violation itself, the plaintiff must plead facts supporting a specific intent to violate the protected right. (*Cornell v. City & County of San Francisco* (2017) 17 Cal.App.5th 766, 801–803.) Specific intent may be established by facts demonstrating reckless disregard of a clearly delineated and plainly applicable constitutional or statutory right. (Id. at p. 803.)

The Complaint alleges in conclusory terms that Defendants acted with “deliberate indifference” and with the “specific intent and purpose to deprive” Decedent of his rights. (Complaint, ¶¶ 69, 72.) Elsewhere, however, the Complaint alleges that Decedent’s need for emergency medical intervention “went unnoticed.” (Complaint, ¶ 40.) Although alternative theories may be pleaded, the present Complaint does not adequately identify which Defendant allegedly knew what, what conduct each Defendant intentionally undertook or failed to undertake, or the facts from which the requisite specific intent or reckless disregard of Decedent’s protected rights reasonably may be inferred. The collective use of “Defendants” is particularly problematic given the materially different roles of the correctional and medical personnel.

Defendants’ immunity argument, however, is overstated. Effective January 1, 2022, Civil Code section 52.1, subdivision (n), expressly provides that the immunities contained in Government Code sections 821.6, 844.6, and 845.6 do not apply to a Bane Act cause of action brought against a peace officer or custodial officer, or directly against the public entity employing such an officer. Thus, to the extent Defendant Kim Martinez qualifies as a custodial officer and the County is sued as her employing public entity, those specified immunity provisions do not categorically bar the Bane Act claim. (Civ. Code, § 52.1, subd. (n).) Subdivision (n), however, does not purport to abolish every statutory immunity applicable to every public employee, and the potential application of other immunity provisions to the medical personnel will depend upon the allegations of the amended pleading.

The demurrer is therefore not sustained on the theory that the Bane Act is categorically barred by governmental immunity. It is **SUSTAINED WITH LEAVE TO AMEND** because the Complaint does not presently allege sufficient defendant-specific facts supporting the requisite intentional interference with a protected right.

LEAVE TO AMEND

This is Plaintiffs’ first opportunity to amend following a ruling on demurrer. None of the identified pleading defects has been shown to be necessarily incapable of correction. Leave to amend is therefore **GRANTED**. (See *City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 747.)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare a written order consistent with this ruling for the Court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide notice of the ruling to all appearing parties as required by law. The Court further directs the parties’ attention to revised Local Rule 3.403(b)(iv) (eff. Jan. 1, 2024) regarding the form of proposed orders.

2:00 PM LINE 4

25-CIV-06841

ESTATE OF HUNTER BERGNER, ET AL VS. SAN MATEO COUNTY, ET AL

ESTATE OF HUNTER BERGNER
SAN MATEO COUNTY

DENISSE O. GASTELUM
ADAM M. STODDARD

MOTION TO STRIKE PORTIONS OF PLAINTIFFS' COMPLAINT

TENTATIVE RULING:

For the following reasons, Defendants County of San Mateo, Kim Martinez, Melodee Legaspi-Tapang, Patricia Martinez, and Anna Kelleher's Motion to Strike Portions of Plaintiffs' Complaint is **DENIED AS MOOT**.

Because the Court has sustained the demurrer with leave to amend as to each cause of action asserted against the moving Defendants, the operative pleading will be superseded by any amended complaint. The Motion to Strike directed to portions of the present Complaint is therefore **DENIED AS MOOT**, without prejudice to any appropriate challenge to an amended pleading.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare a written order consistent with this ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide notice of the ruling to all appearing parties as required by law. The Court further directs the parties' attention to revised Local Rule 3.403(b)(iv) (eff. Jan. 1, 2024) regarding the form of proposed orders.

2:00 PM LINE 5

25-CIV-09348

RONNELL BUTLER, ET AL VS. THE NORTHWESTERN MUTUAL LIFE INSURANCE
COMPANY, ET AL

RONNELL BUTLER
THE NORTHWESTERN MUTUAL LIFE INSURANCE COMPANY

MICHAEL C. COHEN
MICHAEL BEHBOUD

DEFENDANT THE NORTHWESTERN MUTUAL LIFE INSURANCE COMPANY'S MOTION TO STRIKE AND MOTION TO STRIKE
PLAINTIFFS' FIRST AMENDED COMPLAINT

TENTATIVE RULING:

Plaintiffs Latisa Brooks and Ronnell Butler filed oppositions to Defendant Northwestern Mutual Life Insurance Company's demurrer and motion to strike on August 27, 2026, six days after the August 21, 2026 deadline for filing opposition and on the date Defendant's replies were due. Defendant therefore did not have an opportunity to file replies addressing Plaintiffs' oppositions.

California Rules of Court, rule 3.1300(d) permits the Court, in its discretion, to consider late-filed papers. (See *Natkin v. California Unemployment Ins. Appeals Bd.* (2013) 219 Cal.App.4th 997, 1012–1013.) Plaintiffs' counsel submitted a declaration explaining that the oppositions were filed late because counsel inadvertently miscalendared the filing deadline. Under the circumstances, the Court exercises its discretion to consider the late-filed oppositions.

Defendant requests a continuance if the Court considers the oppositions so that it may have an opportunity to file reply briefs. The Court finds a brief continuance appropriate to avoid prejudice to Defendant and to permit full briefing of the issues presented.

Accordingly, the hearing on Defendant Northwestern Mutual Life Insurance Company's demurrer and motion to strike is **CONTINUED to November 12, 2026 at 2:00 p.m. in Department 2**. Defendant may file and serve reply briefs no later than five court days before the continued hearing date. No further briefing is permitted absent further order of the Court.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare a written order consistent with this ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide notice of the ruling to all appearing parties as required by law. The Court further directs the parties' attention to revised Local Rule 3.403(b)(iv) (eff. Jan. 1, 2024) regarding the form of proposed orders.

2:00 PM LINE 6

25-CIV-09348

RONNELL BUTLER, ET AL VS. THE NORTHWESTERN MUTUAL LIFE INSURANCE
COMPANY, ET AL

RONNELL BUTLER
THE NORTHWESTERN MUTUAL LIFE INSURANCE COMPANY

MICHAEL C. COHEN
MICHAEL BEHBOUD

DEFENDANT NORTHWESTERN MUTUAL LIFE INSURANCE COMPANY’S DEMURRER TO PLAINTIFFS’ FIRST AMENDED
COMPLAINT

TENTATIVE RULING:

Matter is **CONTINUED** to **November 12, 2026 at 2:00 p.m. in Department 2.**

If the tentative ruling is uncontested, it shall become the order of the Court.

2:00 PM LINE 7

25-CLJ-09900

IVER CAPITAL CORPORATION VS. ALONDRA MORALES

IVER CAPITAL CORPORATION
ALONDRA MORALES

ALI NABAVI
PRO PER

MOTION OF PLAINTIFF FOR JUDGMENT ON THE PLEADINGS AGAINST DEFENDANT ALONDRA MORALES

TENTATIVE RULING:

Plaintiff Iver Capital Corporation's unopposed Motion for Judgment on the Pleadings is **GRANTED WITHOUT LEAVE TO AMEND** pursuant to Code of Civil Procedure section 438, subdivision (c)(1)(A).

As a preliminary matter, the Court notes that Department 2 is located in Courtroom K at the Northern Branch, 1050 Mission Road, South San Francisco, California 94080.

A motion for judgment on the pleadings is governed by essentially the same standard as a general demurrer. The Court is confined to the face of the challenged pleadings and matters properly subject to judicial notice and does not consider extrinsic evidence. (*Shea Homes Limited Partnership v. County of Alameda* (2003) 110 Cal.App.4th 1246, 1254; *Gerawan Farming, Inc. v. Lyons* (2000) 24 Cal.4th 468, 515–516; *Sykora v. State Department of State Hospitals* (2014) 225 Cal.App.4th 1530, 1534.) A plaintiff is entitled to judgment on the pleadings where the complaint states facts sufficient to constitute a cause of action and the answer does not state facts sufficient to constitute a defense. (Code Civ. Proc., § 438, subd. (c)(1)(A); *Allstate Insurance Co. v. Kim W.* (1984) 160 Cal.App.3d 326, 330–331.)

Here, Plaintiff's Complaint alleges causes of action for breach of contract and common counts arising from Defendant Alondra Morales's purchase of a 2016 Dodge Challenger under an agreement with Plaintiff's predecessor in interest, Veros Credit LLC f/k/a Veros. Defendant's Answer, filed February 4, 2026, admits all allegations of the Complaint and asserts no matter constituting a defense. Defendant filed no opposition to the present motion, has not requested leave to amend, and has identified no facts suggesting that the deficiency in the Answer could be cured by amendment. Accordingly, the Motion is **GRANTED WITHOUT LEAVE TO AMEND**, and judgment shall be entered forthwith. (Code Civ. Proc., § 438, subd. (h)(3).)

Judgment shall be entered in favor of Plaintiff and against Defendant in the principal amount of **\$5,396.56**, together with prejudgment interest **in the amount established under the applicable contractual or statutory rate**, attorney's fees, if properly recoverable and established, and costs as allowed by law.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare a written order consistent with this ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide notice of the ruling to all appearing parties as required by law. The Court further directs the parties' attention to revised Local Rule 3.403(b)(iv) (eff. Jan. 1, 2024) regarding the form of proposed orders.

2:00 PM LINE 8

26-CIV-06367

DAN STEGINK, ET AL VS. SARAH COFFEY, ET AL

DAN STEGINK
SARAH COFFEY

JASON A. BEZIS
MICHELLE MARCHETTA KENYON

WRIT OF MANDATE AND PRELIMINARY INJUNCTION MERITS HEARING

TENTATIVE RULING:

For the reasons stated below, Petitioners Dan Stegink and William Collins’s Verified Petition for Writ of Mandate is **DENIED**.

Petitioners seek an order requiring modification of the ballot question and impartial analysis for City of Pacifica Measure BB. Because the requested relief concerns official election materials, Petitioners must establish not only a statutory violation, but also that issuance of the requested writ will not substantially interfere with the printing or distribution of election materials. (Elec. Code, §§ 9295, 13314.)

The Court finds Petitioners have not met that burden. The declaration of Assistant Chief Elections Officer Jim Irizarry establishes that the County is operating under imminent ballot-production, translation, proofing, programming, and statutory mailing deadlines for the November 3, 2026 election. On this record, Petitioners have not demonstrated that the requested amendments can be implemented at this stage without substantial interference with the election process. The petition is therefore denied on that basis.

In light of the expedited nature of this election matter, the Court also reaches the merits to ensure a complete record for any appellate review. Were relief otherwise available, the Court would find that the phrase “To protect Pacifica’s long-term financial stability” is argumentative and likely to create prejudice in favor of Measure BB, and therefore does not satisfy Elections Code section 13119(c). (*McDonough v. Superior Court* (2012) 204 Cal.App.4th 1169.) The Court otherwise finds that Petitioners have not established a sufficient basis to order the remaining requested changes to the ballot question or to the City Attorney’s impartial analysis.

Accordingly, the Petition for Writ of Mandate is **DENIED**.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare a written order consistent with this ruling for the Court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide notice of the ruling to all appearing parties as required by law. The Court further directs the parties’ attention to revised Local Rule 3.403(b)(iv) (eff. Jan. 1, 2024) regarding the form of proposed orders.

UD LAW AND MOTION CALENDAR THURSDAY, SEPTEMBER 3, 2026

2:00 PM LINE 9

26-UDL-00477

CLAUDIO S. NICOLOSI VS. CHRISTINA NICOLOSI, ET AL

CLAUDIO S. NICOLOSI
CHRISTINA NICOLOSI

STEVEN T. NAUMCHIK
PRO PER

MOTION TO STRIKE/TAX COSTS

TENTATIVE RULING:

For the reasons stated below, Plaintiff Claudio Nicolosi's Motion to Strike or Tax Defendant Mark Williams's Memorandum of Costs is **DENIED**.

Plaintiff voluntarily dismissed Defendant Mark Williams from this action on June 11, 2026. A defendant in whose favor a dismissal is entered is a prevailing party entitled to recover allowable costs as a matter of right. (Code Civ. Proc., § 1032, subds. (a)(4), (b); *Sanabria v. Embrey* (2001) 92 Cal.App.4th 422, 425–426.) The fact that the action remains pending against another defendant does not postpone Williams's prevailing-party status or his right to claim costs. (*Ibid.*; *Fries v. Rite Aid Corp.* (2009) 173 Cal.App.4th 182, 193.)

Williams's June 26, 2026 Memorandum of Costs was timely following his June 11, 2026 dismissal. (Cal. Rules of Court, rule 3.1700(a)(1).) Williams seeks \$255 in filing and motion fees and \$625 in service-of-process expenses, both categories of which are allowable under Code of Civil Procedure section 1033.5, subdivision (a). Williams's verified memorandum, declaration, and supporting documentation sufficiently establish that the claimed expenses were incurred in defending the action. Plaintiff has not demonstrated that the claimed costs were unnecessary or unreasonable.

Accordingly, Williams is entitled to recover costs in the amount of **\$880**. His additional, unquantified request for costs incurred in opposing the present motion is **DENIED without prejudice**.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare a written order consistent with this ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide notice of the ruling to all appearing parties as required by law. The Court further directs the parties' attention to revised Local Rule 3.403(b)(iv) (eff. Jan. 1, 2024) regarding the form of proposed orders.

2:00 PM LINE 10

26-UDL-00922

BEX FMCA, LLC VS. JULIAN EMANUEL SAMBOLA MARTINEZ

BEX FMCA, LLC
JULIAN EMANUEL SAMBOLA MARTINEZ

KIYOSHI DIN
PRO PER

DEMURRER; MOTION TO STRIKE COMPLAINT

TENTATIVE RULING:

For the reasons stated below, Julian Emanuel Sambola Martinez’s Demurrer is **OVERRULED**. Defendant’s Motion to Strike is **DENIED**.

LEGAL STANDARD

The purpose of a demurrer is to test the legal sufficiency of the facts alleged in the operative complaint to determine whether they state a cause of action under any legal theory as a matter of law. (*New Livable Cal. v. Association of Bay Area Gov’ts* (2020) 59 Cal.App.5th 709, 714–715; *Genis v. Schainbaum* (2021) 66 Cal.App.5th 1007, 1014.) A complaint must allege the essential elements of a cause of action. (*Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1134.) A demurrer must dispose of an entire cause of action to be sustained. (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.)

In determining whether a complaint states facts sufficient to constitute a cause of action, the Court accepts as true properly pleaded factual allegations and matters properly subject to judicial notice, but not contentions, deductions, or conclusions of fact or law. (Code Civ. Proc., § 430.30, subd. (a); *Richtek USA, Inc. v. uPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 658.) The complaint must be reasonably interpreted and read as a whole, with its parts considered in context. (*Herman v. Los Angeles County Metropolitan Transportation Authority* (1999) 71 Cal.App.4th 819, 824.) The Court construes the pleading liberally (Code Civ. Proc., § 452) and accepts as true facts that may reasonably be inferred from those expressly alleged. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.)

DISCUSSION

The Complaint adequately alleges that Plaintiff owns the premises, Defendant entered into a written one-year residential tenancy through Plaintiff’s agent, Defendant failed to pay rent, and a three-day notice to pay rent or quit was served and expired without compliance. The Complaint is also properly verified by Plaintiff’s counsel.

Defendant’s contention that he is the “Owner of Record” does not establish a pleading defect. Plaintiff’s judicially noticed Grant Deed identifies BEX FMCA, LLC as the grantee of the property, and Defendant’s arguments concerning an inactive fictitious business name and prior dismissed unlawful-detainer actions do not establish that Plaintiff lacks capacity or standing to maintain this action. Defendant’s motion to strike

likewise identifies no matter appearing on the face of the Complaint that warrants relief under Code of Civil Procedure section 436.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare a written order consistent with this ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide notice of the ruling to all appearing parties as required by law. The Court further directs the parties' attention to revised Local Rule 3.403(b)(iv) (eff. Jan. 1, 2024) regarding the form of proposed orders.

Posted: 3:00 P.M.

